

		\$14,950.00 for settlement administration fees; and \$151,356.36 total PAGA penalties (\$113,517.27 to LWDA). Plaintiff is ordered to submit <u>by June 4, 2026</u> a proposed order and judgment (including the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendment(s) thereto; and notice letter (including the above amounts) in English and Spanish). Only <u>one</u> copy of the notice letter should be attached to the proposed order and judgment. Duplicate and/or superseded copies of the notice letter should not be attached to the proposed order and judgment as exhibits. The final accounting hearing is scheduled for <u>May 27, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
7	Meislik v. Lamkone Restaurants, Inc., et al. 2024-01391500	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$100,000 PAGA settlement. The court has the following questions and comments: 1. Were the motion papers submitted to the LWDA? The proof of service (ROA 67) does not include the LWDA, and Exhibit 3 to the Baker Declaration (ROA 69) states that only the "Proposed Settlement" was submitted to the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The parties should provide the average, high and low individual PAGA payments. 3. Plaintiff should state her total compensation to be received (excluding any enhancement award and including for any individual claims). Plaintiff should also submit a copy of the

		individual settlement agreement(s) referred to in paragraph 33 of the Baker Declaration (ROA 69). 4. The settlement agreement states plaintiff seeks \$5,000 from the gross settlement amount in part to compensate plaintiff "for her general release of claims." Settlement Agreement ¶ 3.2.3. An enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court will not approve a settlement that provides a payment to plaintiff from the gross settlement amount in exchange for a general release. 5. The PAGA Period must have a specific end date to enable the court to evaluate the fairness of the settlement. Settlement Agreement ¶ 1.20. 6. The "Released Parties" provision in paragraph 1.27 is overbroad. It includes unrelated, ambiguous and/or unidentified third parties such as "agents," "affiliates, partners, attorneys," "insurers," and "all other legal entities." In addition, the word "include" should be replaced with "are." 7. The phrase "Aggrieved Employees" should be inserted in paragraph 5 after "Plaintiff" and before "and PAGA Counsel." 8. The following phrase should be removed from the release in paragraph 5.2: "that are based on the facts of the Action and the PAGA Notices submitted by Plaintiff to the LWDA." 9. The second-to-last sentence in paragraph 8 should be revised to remove the reference to shortening the "release period," as the court will not approve a settlement that permits defendants to shorten the PAGA Period. 10. The parties should provide the settlement administrator's qualifications and experience, including evidence that the settlement administrator has procedures in place to protect the security of class data, and sufficient insurance in the event of a data breach or mishandling of the settlement funds. The parties should also submit a copy of the settlement administrator's invoice. The parties should explain why the settlement administrator's seemingly high bid (\$9,000) is reasonable for this case. 11. Plaintiff's counsel seeks attorneys' fees totaling 35% of the Total Settlement Amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here.
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		should state that judgment will be posted on the settlement administrator's website for at least 180 days. 22. Should the notice letter be provided in any language other than English? If the notice will be provided in a language(s) other than English, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit. <u>As to the proposed order and judgment (ROA 63):</u> 23. The proposed order and judgment should be revised consistent with the above. 24. Counsel information should be removed from the caption page of the proposed order and judgment. 25. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). 26. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees. 27. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 28. The last paragraph of the proposed order and judgment should include reference to Civil Procedure Code section 664.6. 29. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall
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		provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
8	Oliveros v. Shark Island Yacht Club, et al. 2021-01210803	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$125,569.93 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties to the settlement are plaintiff and defendant Shark Island Yacht Club. Defendant Patrick Allen Ramsey is in default. ROA 18. Plaintiff states he intends to dismiss Ramsey if and when Shark Island pays the settlement and a second sum plaintiff alleges is owed. Ginez Decl. (ROA 242) ¶ 27. Defendants Anton Anich and Brianna N. Warren also remain at issue. The court will not grant the approval motion and enter judgment thereon until plaintiff has resolved his claims against the individual defendants in some manner. 2. Why are the individual PAGA payments calculated "according to the total number of pay periods the Aggrieved Employee allegedly suffered a meal period violation, meal period premium pay violation, inaccurate wage statement violation, and/or final wage payment violation? Second Amendment to Settlement Agreement ¶ 14. How does this manner of calculation differ from calculating the individual PAGA payments according to the number of pay periods the aggrieved employee worked during the PAGA Period? 3. The aggrieved employees' release in paragraph V.1 of the second amendment to the settlement agreement is overbroad. Releases by aggrieved employees other than plaintiff should be limited the civil penalties available under PAGA based on the facts alleged in the operative complaint